

		alleges that the Morningside Property did not meet the requirements of Laguna Beach Municipal Code §25.08.004 as a “building site” because of the lack of access without an easement, thus explaining how the granting of project approval and the easement were intertwined components of the same decision. (FAP ¶26, 28) Based on the allegations in the petition, it is apparent that Petitioner seeks to challenge the entire decision to allow construction on the Morningside property. While Petitioner claims he is not challenging discretionary development approvals but is instead challenging “illegal” conduct, the gravamen of the action is to challenge the City’s decision to approve the RPI project, which included granting the easement. (See, <i>AIDS Healthcare Foundation v. City of Los Angeles</i> (2022) 86 Cal.App.5th 322, 337-338; see also, <i>Weiss v. City of Del Mar</i> (2019) 39 Cal. App. 5th 609, 622–624.) Accordingly, the demurrer is SUSTAINED, with 14 days leave to amend. In light of ROA 79, the 8/3/26 OSC re status of unrepresented trustee is vacated. The court continues the status conference from 8/3/26 to 11/2/26 at 8:45am in Dept. C24. City shall give notice.
304	<i>Axos Bank vs. Taylor Heavy Haul, LLC</i>	The court withholds a tentative ruling. Parties shall come prepared to present brief argument and answer questions.
306	<i>Sweet James, LLP vs. Upasani</i>	The motion of defendant Ninad Upasani for an order granting leave to file proposed a cross-complaint is GRANTED. Defendant is ordered to correct the caption on the proposed cross-complaint and then file the original with the Court within 10

	days and serve a copy of the filed cross-complaint on plaintiff. Both parties are to familiarize themselves with the relevant sections of the Code of Civil Procedure and Rules of Court regarding service of papers. Defendant failed to file any proofs of service with his moving and reply papers. Plaintiff improperly served the opposition by electronic means. Defendant is a self-represented litigant who is exempt from mandatory electronic filing and service requirements under Code Civ. Proc. § 1010.6(g)(4) and Cal Rules of Ct 2.253(b)(2). “In civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise.” (Cal Rules of Ct 2.253(b)(3).) Here, plaintiff’s complaint (ROA 2) contains causes of action that include breach of contract, misappropriation, and intentional interference with contractual relationships based on allegations that defendant, its former financial controller, breached a confidentiality and non-disclosure agreement by using its confidential and propriety information after his termination and hiring employees away from it. Defendant’s proposed cross-complaint is, among other things, based on allegations that his termination of employment was pretextual. As such, it is reasonably related to the transactions or occurrences alleged in the complaint. In the supplemental declaration filed with the reply (ROA 134), defendant declares that, at the time that he filed the answer, he was focused on defending against the complaint. He declares that
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		he brought the instant motion for leave to file the cross-complaint after he “organized the relevant facts and legal basis for my claims.” The court continues the 8/3/26 CMC to 11/16/26 at 8:45am in Dept. C24. Defendant shall give notice.
307	<i>Credit Line Capital Group, Inc. vs. Liu</i>	The motion of plaintiff Credit Line Capital Group, Inc., for an order correcting a clerical error in the judgment entered on April 9, 2026 nunc pro tunc is GRANTED IN PART. The court checks the box under 5(a) indicating that defendants’ names are continued on attachment 5a. The court also strikes attachment 6a and any reference thereto. The clerk shall give notice.
308	<i>Christiansen vs. Arellano</i>	The motion for entry of stipulated judgment filed by defendant/cross-complainant Breanna Arellano (Arellano) against plaintiff/cross-defendant James Christiansen and cross-defendant Speak Easy Social Club, LLC (collectively, Cross-Defendants) is DENIED. Cross-Defendants’ evidentiary objections are OVERRULED. As to Arellano’s evidentiary objections, the cited testimony and objections are not relevant to the disposition of the motion. The court thus declines to rule on the objections. Arellano relies on Code of Civil Procedure sections 664.6 and 187, and <i>Rooney v. Vermont Investment Corp.</i> (1973) 10 Cal.3d 351, in support of her request for entry of judgment. The summary procedure of Code of Civil Procedure section 664.6 (Section 664.6) to obtain judgment can